

Mahaveer v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 4 August 2014 · WRIT - C No. 39991 of 2014 · **Writ disposed; petitioner relegated to Clause 6.14 instalment representation.**

HEADNOTE

A consumer who challenged a recovery citation for electricity dues and offered to pay in instalments was relegated to a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005. The Court recorded that the Executive Engineer, D.G.M. and General Manager may grant an instalment facility to a consumer in financial distress, and directed the concerned authority to decide any such representation in accordance with law.

FACTUAL SUMMARY

Mahaveer approached the Allahabad High Court challenging a citation dated 10 July 2014 issued by respondent no. 3 for recovery of Rs. 1,29,312 towards consumption of electrical energy. Counsel submitted that the petitioner was ready and willing to deposit the entire amount in instalments. Counsel for the distribution company pointed to Clause 6.14 of the U.P. Electricity Supply Code, 2005, under which specified officers may extend an instalment facility to a consumer in financial distress, and said the petitioner could approach those authorities with a representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Where a consumer challenges a recovery citation for electricity dues and seeks to pay in instalments, the writ court may dispose of the petition with liberty to make a representation under Clause 6.14 of the U.P. Electricity Supply Code, 2005, which empowers the Executive Engineer, D.G.M. and General Manager to extend an instalment facility to a consumer in financial distress; if a representation is made within the time allowed, the authority shall decide it in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND ENTITLEMENT TO INSTALMENTS

The Court did not examine the citation dated 10.7.2014 on merits or decide whether the petitioner was in financial distress or entitled to instalments; that was left to the Clause 6.14 authority. ¶ 1